

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Matthew Harris, Presiding

(covering for Honorable Vincent I. Parrett)

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

DATE: 9/16/2025 TIME: 9:00 A.M. and 9:01 A.M

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

1. The Court by calling **(408) 808-6856**, and
2. The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	26CV491614	D. Bowd vs Intuit, Inc.	Hearing: Demurrer and Motion to Strike Ctrl Click (or scroll down) on Line 1 for tentative ruling. Defendant will submit the proposed order.
LINE 2	25CV481128	Velocity Investments LLC vs Michael Corpuz et al	Hearing: Demurrer Ctrl Click (or scroll down) on Line 2 for tentative ruling. Defendant will submit the proposed order.
LINE 3	24CV453256	Capital One, N.A., successor by merger to Discover Bank vs Quang D Nguyen	Hearing: Summary Judgment/Adjudication Ctrl Click (or scroll down) on Line 3 for tentative ruling. The court will sign the proposed order and judgment.
LINE 4	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Admissions Deemed Admitted Ctrl Click (or scroll down) on Line 4 for tentative ruling.
LINE 5	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Ctrl Click (or scroll down) on Line 5 for tentative ruling.
LINE 6	25CV476451	Darnell Johnson vs Narinder Bains et al	Motion: Compel (return of property) Parties to Appear
LINE 7	23CV427736	Suzanne Byrd et al vs American Honda Motor Co., Inc., a California Corporation	Hearing: Attorney fees and costs Parties to Appear
LINE 8	26CV487271	A.T., a minor et al vs Tessellations	Hearing: Trial Preference Ctrl Click (or scroll down) on Line 8 for tentative ruling. Defendant will submit the proposed order.
9:01 Calendar			
LINE 1	24CV442842	Aaron White v. Yordanos Gebai	Motion: Withdraw as Counsel Unopposed and granted. Moving party to prepare an order for the court's signature.

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Calendar Line 1

Case Name: *D. Bowd v. Intuit, Inc.*

Case No.: 26CV491614

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Defendant Intuit, Inc. (“Defendant”) demurs to second and third causes of action in plaintiffs D. Bowd’s (“Plaintiff”) complaint pursuant to Code of Civil Procedure section 430.10 on the ground the claims fail to state facts sufficient to constitute a cause of action. (Notice of Demurrer and Motion to Strike (“Motion”) at p. 2:6-9 [filed: July 8, 2026].) Defendant additionally demurs to the entire complaint on the ground that Plaintiff did not use his full name. (*Ibid.*) Defendant also seeks to strike punitive damages from the complaint. (*Id.* at p. 2:12-13.)

The Motion came on for hearing on September 16, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows:

Factual and Procedural Background¹

According to the allegations of the complaint, Plaintiff is diagnosed with Autism Spectrum Disorder (“ASD”) and Attention Deficit Hyperactivity Disorder (“ADHD”) and receives assistance through the Department of Rehabilitation and the San Andreas Regional Center to assist him with employment-related support services. (*Id.* at ¶ 19.) As a result of the ASD and ADHD, Plaintiff has difficulty understanding instructions, communication, time management, multitasking, organization, etc. (*Id.* at ¶ 23.)

In September 2020, Plaintiff attended an Integrate Advisors neurodiversity job fair and Defendant was also present as an employer company host. (Complaint, ¶ 20.) In November 2020, Plaintiff requested interview accommodations from Defendant and Defendant was aware that Plaintiff was on the autism spectrum. (*Id.* at ¶ 21.)

In March 2021, Plaintiff was hired by Defendant as a Senior Software Engineer through its neurodivergent hiring program. (Complaint, ¶ 22.) In May 2021, Plaintiff began working with a job coach through the California Department of Rehabilitation, who recommended Plaintiff submit an accommodation request to Defendant. (*Id.* at ¶ 24.) In July 2021, Plaintiff submitted a formal request which included seven accommodations and Defendant’s HR department confirmed receipt of the request but failed to formally approve or reject the request in a timely manner. (*Id.* at ¶¶ 26-27.) In August 2021, Plaintiff sent an email indicating he had not heard back regarding his requests and received a response that it was actively being worked on with Plaintiff’s manager. (*Id.* at ¶¶ 29-30.)

Despite Plaintiff’s request, Defendant failed to implement meaningful accommodations and his request was never formally granted. (Complaint, ¶ 32.) After Plaintiff complained, Defendant approved accommodations for a limited time period: 48 days and then 24 days. (*Id.* at ¶ 33.) After these periods expired, there was no follow-up or continued support. (*Ibid.*) Further, the accommodations Defendant claimed to have approved were inadequate and failed to address Plaintiff’s actual needs. (*Id.* at ¶ 34.) Later, in 2024, Defendant issued another accommodation approval with a deadline but failed to provide any other accommodations. (*Id.* at ¶ 37.)

¹ For purposes of efficiency and clarity, the Court provides only a summary of the factual allegations relevant to the Motion.

Throughout his employment, Defendant kept asking Plaintiff for medical documentation rather than engaging in a good faith interactive process and continued to delay until layoffs occurred. (Complaint, ¶ 39.) From 2021 through 2022, Plaintiff received positive performance reviews. (*Id.* at ¶¶ 41-42.)² In May 2023, Plaintiff met with his manager, who expressed concerns about Plaintiff's performance and noted that Plaintiff had no approved accommodations on file. (*Id.* at ¶ 46.) Plaintiff then requested help communicating via neurodiversity training instructors but this request was rejected. (*Id.* at ¶ 48.) In July 2023, Plaintiff received a negative performance review and was denied the entirety of his incentive package (approximately \$150,000). (*Id.* at ¶¶ 49, 51.) Plaintiff requested reconsideration of his performance review and was told to submit an Ethics Investigation complaint. (*Id.* at ¶ 52.) After this, he received only \$10,000 of his incentive pay and later, in 2024, Plaintiff was denied his annual bonus and stock compensation. (*Id.* at ¶¶ 53-54.) Despite the negative performance reviews, Plaintiff received positive peer reviews from his coworkers. (*Id.* at ¶¶ 55-59.)

At the end of 2023, Plaintiff was offered a choice between an Internal Job Search Accommodation or an accommodation for his current role as Senior Software Engineer, with the caveat that any new position would be at a lower rate of pay. (Complaint, ¶ 67.) Plaintiff's manager began canceling one-on-one meetings and he was not invited to meets where his peers were included. (*Id.* at ¶¶ 68-69, 71, 74.) HR did not provide meaningful support to Plaintiff and instead gathered information about Plaintiff's job coach to create an appearance of ongoing accommodations process. (*Id.* at ¶ 70.)

On July 10, 2024, Plaintiff was laid off from his employment shortly after his attorney sent a demand letter to Defendant. (Complaint, ¶¶ 79, 80.)

On April 9, 2026, Plaintiff initiated this action, asserting the following claims:

- 1) Disability Discrimination in Violation of FEHA (Government Code § 12940(a));
- 2) Failure to Provide Reasonable Accommodation in Violation of FEHA (Government Code § 12940(m));
- 3) Failure to Engage in the Good Faith Interactive Process in Violation of FEHA (Government Code § 12940(n));
- 4) Wrongful Termination in Violation of Public Policy (Tameny Claim);
- 5) Retaliation in Violation of FEHA (Government Code § 12940(h)); and
- 6) FAILURE TO PREVENT DISCRIMINATION AND RETALIATION IN VIOLATION OF FEHA (GOVERNMENT CODE § 12940(k)).**

On July 8, 2026, the Defendant filed a joint demurrer and motion to strike directed at the complaint. Plaintiff opposes both motions and Defendant filed a reply.

Demurrer

I. LEGAL STANDARD ON DEMURRER

² The Complaint contains two paragraphs numbered 41. The Court cites both here.

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

II. USE OF “PSEUDONYM”

Defendant asserts that Plaintiff has used a pseudonym in violation of Code of Civil Procedure section 367 because he filed the complaint as “D. Bowd” and did not seek permission from the Court. (Demurrer, p. 10:21-24.)

Pursuant to Code of Civil Procedure section 367, “[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” (Code Civ. Proc., § 367.) The purpose of section 367 is to “protect a defendant from harassment by other claimants on the same demand.” (*The Rossdale Group, LLC v. Walton* (2017) 12 Cal.App.5th 936, 944.) Courts have rejected “the assertion that section 367 ‘requires that a party sue in his or her own name. It does not. Notwithstanding its wording, this provision requires that an action be brought by the real party in interest.’” (*Id.* at p. 945.) “As our Supreme Court noted over a century ago, ‘a person may adopt any name in which to prosecute business, and may sue or be sued in such a name.’” (*Ibid.*)

Here, Plaintiff refers to himself by his first initial and last name. Moreover, the complaint itself indicates Plaintiff’s name is Daniel. (Complaint, ¶¶ 30, 35.) The Court does not find that Plaintiff has used a pseudonym, such as “John Doe” or “Doe,” nor does he run afoul of section 367. Accordingly, the demurrer to the entire complaint on the ground Plaintiff violated section 367 is OVERRULED.

III. SECOND CAUSE OF ACTION

“The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff’s disability.” (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010 (*Scotch*).) A reasonable accommodation is “a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.” (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 974 (*Nadaf*).)

Defendant argues that the Complaint concedes that Defendant provided reasonable accommodations that allowed him to sufficiently perform his job duties. (Motion, p. 11:4-6.) Defendant contends that because Plaintiff’s colleagues provided him with positive feedback, Plaintiff was able to do his job with the accommodations Defendant provided. (Motion, p. 11:19-22, citing Complaint, ¶¶ 41-42, 54-58, 107.) Defendant’s reliance on *Hostin v. Ariz. Sch. for the Deaf & Blind* (9th Cir. 2001) 9 F.App’x 757, 759 (*Hostin*) to support this argument is unavailing. First, the Court notes that federal authority may be regarded as persuasive but is not binding on California courts. (*People v. Uribe* (2011) 199 Cal.App.4th 836, 875.) Further, the *Hostin* Court addressed claims for disability discrimination under the Americans with Disabilities Act and Rehabilitation Act, not a claim for failure to provide reasonable accommodations under the FEHA. (*Hostin, supra*, at p. 759.) Finally, *Hostin* was decided at

the summary judgment stage, where the Court considered the parties' evidence. On demurrer, the facts alleged are deemed true. (See *Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.)

In opposition, Plaintiff argues that the complaint sufficiently alleges that Defendant failed to provide accommodations after Plaintiff made several requests. (Opposition, p. 6:1-15, citing Complaint, ¶¶ 27, 32, 33, 34, 36, 38.)

“Under the California Fair Employment and Housing Act (FEHA) (Gov. Code, § 12900 et seq.), an employer has an affirmative duty to make reasonable accommodations . . . , unless doing so would produce undue hardship to its operation.” (*Kaur v. Foster Poultry Farms LLC* (2022) 83 Cal.App.5th 320, 327.) The duty to make reasonable accommodations “is an *ongoing* one and is not satisfied based on a single attempt at a single point in time.” (*Id.* at p. 351 [emphasis original].) Furthermore, the duty “continues when the employee asks for a different accommodation or where the employer is aware that the initial accommodation is failing and further accommodation is needed.” (*Scotch, supra*, 173 Cal.App.4th at p. 1013.)

Here, Plaintiff alleges that he did not receive requested accommodations, and when he *did* receive accommodations, they were for “limited time periods” including 48 days and 24 days and that accommodations were given and then withdrawn without explanation. (Complaint, ¶¶ 33, 36.) Whether the accommodations, and their limited time periods, were reasonable is a question of fact not properly decided on demurrer. (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 374.) At the pleading stage, the Court finds these allegations sufficient to state a claim for failure to provide reasonable accommodations.

Accordingly, the demurrer to the second cause of action is OVERRULED.

IV. THIRD CAUSE OF ACTION

FEHA makes it unlawful for an employer “to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known . . . disability.” (*Geflo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 61; Gov. Code, § 12940, subd. (n).)

Defendant contends that the third cause of action is “conclusory” and, additionally, Plaintiff alleges there *was* an interactive process. (Motion, p. 13:6-10.) In opposition, Plaintiff persuasively argues that the obligation to engage in the interactive process is continuous and that the Complaint alleges that Defendant was responsible for the breakdown in that process. (Opposition, p. 8:15-18, 26-27.)

“[The fact that an employer took some steps to work with an employee to identify reasonable accommodations does not absolve the employer of liability . . . If the employer is responsible for a later breakdown in the process, it may be held liable.” (*Nadaf, supra*, 166 Cal.App.4th at p. 985.) The interactive process requires “communication and good-faith exploration of possible accommodations between employers and individual employees with the goal of identifying an accommodation that allows the employee to perform the job effectively.” (*Id.* at p. 984 [internal quotations omitted].)

In this case, the Court finds that Plaintiff's allegations are sufficient to support a claim for failure to engage in the interactive process. Specifically, Plaintiff alleges that his request was never formally approved, he complained about accommodations and then accommodations were approved for limited time periods and there was "no follow-up or continued support after these brief periods expired[.]" (Complaint, ¶¶ 32-33.) Additionally, there are allegations that Defendant did not make Plaintiff aware of tools available to him (Complaint, ¶ 36); Defendant failed to respond to Plaintiff's letter(s) (Complaint, ¶ 38); Defendant would request medical documentation but did not otherwise engage in a good faith interactive process (Complaint, ¶¶ 39, 113). At the pleading stage, these allegations are sufficient.

Based on the foregoing, the demurrer to the third cause of action is OVERRULED.

Motion to Strike

V. LEGAL STANDARD ON MOTION TO STRIKE

A court may strike out any irrelevant, false, or improper matter asserted in a pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, a court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Clauson v. Superior Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

VI. PUNITIVE DAMAGES GENERALLY

"[T]o state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294." (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.) The statutory elements include allegations defendant has been guilty of oppression, fraud, or malice. (*Ibid.*) Malice is conduct intended by defendant to cause injury to plaintiff or despicable conduct which is carried on by defendant with a willful and conscious disregard of the rights or safety of others. (*Ibid.*; Civ. Code, § 3294, subd. (c).) Oppression is despicable conduct that subjects plaintiff to cruel and unjust hardship in conscious disregard of plaintiff's rights. (Civ. Code, § 3294, subd. (c)(2).) Fraud is an intentional misrepresentation, deceit, or concealment of a material fact known to defendant with the intention of depriving plaintiff of property or legal rights or otherwise causing injury." (*Id.* at subd. (c)(3).) Simply pleading the terms malice, oppression or fraud by themselves is insufficient to support a claim for punitive damages; a plaintiff must allege sufficient facts supporting that existence of malice, oppression, or fraud. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

VII. DISCUSSION

Defendant seeks to strike the following portions of the Complaint on the ground they do not demonstrate malice, fraud, or oppression to support a request for punitive damages:

- 1) PAGE 19:4-14;
- 2) PAGE 19:15-16;
- 3) PAGE 21:18-22;
- 4) PAGE 21:23;
- 5) PAGE 23:15-21;

- 6) PAGE 23:22;
- 7) PAGE 25:15-23;
- 8) PAGE 25:24;
- 9) PAGE 27:16-22;
- 10) PAGE 27:23;
- 11) PAGE 29:8-15;
- 12) PAGE 29:16; AND
- 13) PAGE 30, PRAYER FOR RELIEF (E).

(See Motion, pp. 15-17.)

Defendant contends that the allegations do not establish intentional wrongdoing and there are no facts that his termination was motivated by malice or any intent to harm. (Motion, p. 15:1-12.) In opposition, Plaintiff asserts that punitive damages are adequately pled, including that Defendant failed to implement requested accommodations, withdrew existing accommodations, denied available assistive technology, failed to respond to requests, criticized Plaintiff for disability-related traits; and terminated Plaintiff. (Opposition, p. 10:18-26, citing Complaint, ¶¶ 26-38, 47, 49, 96, 121.)

Here, the Court does not find that the alleged facts rise to the level of malice, oppression, or fraud necessary to state a claim for punitive damages. (See e.g., *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 54, 63 [finding punitive damages should be stricken even where the plaintiff sufficiently stated a claim for gender discrimination]; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331 [“Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.”][internal quotations omitted].) With that said, motions to strike are disfavored and cannot be used as vehicle to accomplish a “line item veto” of allegations in a pleading. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) Thus, the Court finds it appropriate to strike the following language from each item listed above only:

- 1) PAGE 19:4-7, 11-14: **“DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF’S RIGHTS, AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED” AND “. . . ACTING IN A DELIBERATE, CALLOUS, AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES IN AN AMOUNT SUFFICIENT TO PUNISH AND DETER DEFENDANT INTUIT AND OTHERS FOR SUCH CONDUCT.”**
- 2) PAGE 19:15-16: **“PLAINTIFF PRAYS FOR JUDGMENT, INCLUDING PUNITIVE DAMAGES, AS MORE FULLY SET FORTH BELOW.”**
- 3) PAGE 21:18-22: **“DEFENDANTS COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING**

PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES."

- 4) PAGE 21:23: "INCLUDING PUNITIVE DAMAGES."**
- 5) PAGE 23:15-21: "DEFENDANTS COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED. DEFENDANTS' WILLFUL AVOIDANCE OF THE INTERACTIVE PROCESS AND BAD FAITH IN FAILING TO RESPOND TO OR MEANINGFULLY IMPLEMENT ACCOMMODATIONS DEMONSTRATE DELIBERATE DISREGARD OF PLAINTIFF'S RIGHTS. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES."**
- 6) PAGE 23:22: "INCLUDING PUNITIVE DAMAGES."**
- 7) PAGE 25:15-18, 20-23: "DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS, AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED" AND "... ACTING IN A DELIBERATE, CALLOUS, AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES IN AN AMOUNT SUFFICIENT TO PUNISH DEFENDANT INTUIT IN AN AMOUNT TO BE PROVEN AT TRIAL."**
- 8) PAGE 25:24: "INCLUDING PUNITIVE DAMAGES."**
- 9) PAGE 27:16-18, 20-22: "'DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED DESPICABLY, MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY, WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE AND IN CONSCIOUS DISREGARD OF PLAINTIFF'S RIGHTS" AND "... ACTING IN A DELIBERATE, CALLOUS, AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO PUNITIVE DAMAGES FROM DEFENDANT INTUIT IN AN AMOUNT ACCORDING TO PROOF."**

10) PAGE 27:23: “INCLUDING PUNITIVE DAMAGES.”

11) PAGE 29:8-11, 12-15: “DEFENDANT INTUIT COMMITTED THE ACTS HEREIN ALLEGED MALICIOUSLY, FRAUDULENTLY, AND OPPRESSIVELY WITH THE WRONGFUL INTENTION OF INJURING PLAINTIFF, AND ACTED WITH AN IMPROPER AND EVIL MOTIVE AMOUNTING TO MALICE, IN CONSCIOUS DISREGARD FOR PLAINTIFF'S RIGHTS AND THUS AN AWARD OF EXEMPLARY AND PUNITIVE DAMAGES IS JUSTIFIED” AND “. . . ACTING IN A DELIBERATE, CALLOUS AND INTENTIONAL MANNER IN ORDER TO INJURE AND DAMAGE PLAINTIFF. PLAINTIFF IS THEREFORE ENTITLED TO RECOVER AND HEREIN PRAYS FOR PUNITIVE DAMAGES IN AN AMOUNT SUFFICIENT TO PUNISH AND DETER DEFENDANT INTUIT AND OTHERS FOR SUCH CONDUCT.

12) PAGE 29:16: “INCLUDING PUNITIVE DAMAGES.”

13) PAGE 30:1-2: “FOR PUNITIVE DAMAGES IN AN AMOUNT TO BE DETERMINED AT TRIAL SUFFICIENT TO PUNISH, PENALIZE AND/OR DETER DEFENDANTS AND OTHERS FROM ENGAGING IN THE CONDUCT DESCRIBED HEREIN.”

Accordingly, the motion to strike is **GRANTED, in part**, as stated above in Items 1-13.

Conclusion and Order

The demurrer to the entire Complaint is **OVERRULED**. The demurrer to the second and third causes of action is **OVERRULED**. The motion to strike Items 1-13 is **GRANTED, in part**, as described above.

Calendar Line 2

Case Name: *VELOCITY INVESTMENTS LLC v. MICHAEL D. CORPUZ*

Case No.: 25CV481128

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Michael D. Corpuz demurs to the complaint on the grounds that it fails to allege facts sufficient to state a claim for breach of contract and is uncertain. (Notice of Demurrer at 1:22-25)

Defendant's demurrer came on for hearing on September 16, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

Velocity is a debt buyer as defined in Civil Code section 1788.50(a)(1) and holds California Debt Collector License Number 10229-99. (Complaint ¶¶ 5, 7)

On May 16, 2023, OneMain Financial Group, LLC issued a consumer loan to Corpuz under account number ending in 4619. Corpuz agreed to repay the loan pursuant to the terms of a Loan Agreement and Disclosure Statement. Corpuz breached the agreement by failing to make required payments; his last payment was October 8, 2024. (Complaint ¶¶ 6, 13-16)

The account was charged off on October 31, 2024, with a balance of \$16,368.10. Velocity purchased the debt from OneMain Financial Issuance Trust 2019-2 on January 29, 2025, and now solely owns the debt. Velocity seeks damages of \$16,368.10. (Complaint ¶¶ 8, 17)

Velocity initiated this action on December 1, 2025, alleging a single cause of action for breach of contract.

II. Legal Standard

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid.*) The court

assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts "construe the complaint 'liberally ... with a view to substantial justice between the parties[.]'" (*Ibid.*) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted under California law. "Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) "Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not." (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Preliminary Considerations

In support of its opposition to the demurrer, Velocity submits declaration of Sarkis Karayan to establish that no post-charge-off interest or fees were imposed or are sought. This declaration is impermissible extrinsic evidence that cannot be considered to resolve the pleading confusion or the demurrer. A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *SKF Farms, supra*, 153 Cal.App.3d at 905)

Meanwhile, Corpuz asks the Court – in his reply - to disregard the opposition in its entirety because Velocity elected to mail its opposition instead of serving it electronically, thus constructively changing his reply's due date to only two days before the hearing. (Reply at 2:9-15)

The Court notes that Corpuz filed his reply timely on September 8, 2026, contesting the merits of Velocity's opposition, despite his claim of inadequate service and notice. It is well settled that a party's opposition to a motion on its merits is a waiver of any defects or irregularities in the notice of the motion. This rule applies even when no notice was given at all. (*Carlton v. Quint*, (2000) 77 Cal. App. 4th 690, 697.) Applying this rule to Corpuz's reply, the Court concludes that any inadequacy in the service of the opposition is waived. Therefore, the Court exercising its discretion considers the merits of Velocity's opposition.

IV. Analysis

To allege a cause of action for breach of contract, a plaintiff must allege (1) existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) "A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect. In order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions." (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993; internal citation and quotes omitted)

Here the complaint alleges all elements of a breach of contract claim. The attached Loan Agreement and Disclosure Statement establishes the existence of a contract and its terms. Velocity alleges that OneMain made the loan, Corpuz agreed to repay it, Corpuz failed to make the required payments, and the unpaid principal is \$16,368.10. (Complaint ¶¶ 13-17) These allegations state a conventional contract claim.

Corpuz criticizes paragraph 15 of the complaint, which contains generic references to "purchases," "cash advances," and "balance transfers." This language is surplusage. Paragraphs 6 and 13 through 14 and Exhibit A make clear that the transaction is a closed-end OneMain consumer loan, not a revolving credit account. The generic language does not negate the specific loan allegations or prevent Corpuz from answering. Read as a whole and liberally construed, the complaint sufficiently identifies the nature of the debt and transaction.

Corpuz goes on to argue that the complaint is not viable because it fails to plead facts showing: (1) added post-charge-off interest or fees to the balance sought as required by Civ. Code, § 1788.58; (2) a pre-litigation notice prior to filing the suit as required by Civ. Code, § 1788.52; (3) notice of intent to sell, commercial reasonableness of the sale, or post-sale accounting to recover a deficiency, as required by Civ. Code § 2983.2 (the Rees-Levering Act) and the Unified Commercial Code ("UCC") §§ 9626, 9610; and (4) how the amount demanded was calculated thus leaving the complaint uncertain. Corpuz emphasizes that Velocity is a debt buyer seeking to recover a deficiency balance on a repossessed motor vehicle loan without complying with the repossession and deficiency statutes.

However, Corpuz's arguments fail for the following reasons:

- 1. THE REPOSSESSION AND DEFICIENCY STATUTES DO NOT APPLY BECAUSE NO DISPOSITION OF THE COLLATERAL IS ALLEGED. NEITHER THE COMPLAINT NOR EXHIBIT A ALLEGES THAT THE VEHICLE WAS REPOSSESSED, SURRENDERED, RETAINED, OR DISPOSED OF. ON DEMURRER, THE COURT CONSIDERS ONLY THE PLEADING, ITS EXHIBITS, AND MATTERS PROPERLY SUBJECT TO JUDICIAL NOTICE—NOT NEW FACTUAL ASSERTIONS APPEARING ONLY IN THE DEFENDANT'S MEMORANDUM. (SEE, *EVANS V. CITY OF BERKELEY* (2006) 38 CAL.4TH, 1, 6.)**
- I. THE DISTINCTION MATTERS BECAUSE THE NOTICE AND COMMERCIAL-REASONABLENESS RULES INVOKED BY CORPUZ ARISE UPON DISPOSITION OF COLLATERAL AFTER DEFAULT. CIVIL CODE SECTION 2983.2(A) REQUIRES 15 DAYS WRITTEN NOTICE OF INTENT TO DISPOSE OF A REPOSSESSED OR SURRENDERED MOTOR VEHICLE. (CIV. CODE § 2983.2) FINANCIAL CODE SECTION 22328 SIMILARLY APPLIES TO DISPOSITION OF A REPOSSESSED OR SURRENDERED MOTOR VEHICLE. (FIN. CODE § 22328) UCC SECTION 9626 PROVIDES THAT IN A CONSUMER TRANSACTION THE SECURED PARTY BEARS THE BURDEN OF PROVING ARTICLE 9 COMPLIANCE IN**

AN ACTION IN WHICH A DEFICIENCY OR SURPLUS IS AT ISSUE. THAT RULE PRESUPPOSES AN ACTUAL DISPOSITION OF COLLATERAL AND A RESULTING DEFICIENCY OR SURPLUS.

Here, the Complaint seeks the unpaid contract balance; it does not allege a deficiency remaining after disposition. A demurrer cannot be sustained based on statutory prerequisites triggered only by an event the pleading does not allege. The fact that the loan agreement grants a security interest in a vehicle does not, without more, convert a claim for unpaid principal into a deficiency claim subject to the notice and disposition requirements of Civil Code section 2983.2 and Financial Code section 22328.

Bank of America v. Lallana, (1998) 19 Cal. 4th 203, relied upon by Corpuz, is distinguishable for the same reason. In *Lallana*, the vehicle had been repossessed and sold, the creditor had sent a notice of sale, and the dispute concerned whether the actual sale complied with the governing notice requirements. *Lallana* does not hold that every complaint on a vehicle-secured loan must allege repossession, sale, notice, accounting, and commercial reasonableness when no disposition is alleged.

Corpuz has not placed the triggering facts—repossession, sale, or other disposition—in issue through the pleadings. If Corpuz properly places an actual disposition at issue during the litigation, Velocity will then bear the proof required by Commercial Code section 9626. The statute does not permit the Court to assume the triggering facts on demurrer.

- 2. CIVIL CODE SECTION 2983.2 IS INAPPLICABLE BECAUSE IT DOES NOT APPLY TO LOANS MADE BY LENDERS LICENSED UNDER DIVISION 9 OF THE FINANCIAL CODE. SECTION 2983.2(D) STATES: "THIS SECTION DOES NOT APPLY TO A LOAN MADE BY A LENDER LICENSED UNDER DIVISION 9 (COMMENCING WITH SECTION 22000) OF THE FINANCIAL CODE."**

Complaint's Exhibit A identifies OneMain Financial Group, LLC as the lender and displays "License No. 60DBO-90929." While the exhibit does not explicitly state that this is a Division 9 finance lender license, the notation appears in the "LENDER/SECURED PARTY NAME AND ADDRESS" box immediately above the lender's name. On demurrer, the Court accepts the reasonable inference that OneMain holds a finance lender license under Division 9. Corpuz does not address subdivision (d) in his demurrer. On the face of the incorporated agreement, Civil Code section 2983.2 supplies no basis to attack the pleading. Even if Financial Code section 22328, which applies to loans made by finance lenders, imposes comparable requirements, those requirements arise only upon disposition of a repossessed or surrendered motor vehicle—an event not alleged here.

- 3. VELOCITY HAS COMPLIED WITH THE REQUIREMENTS SET FORTH IN CIV. CODE, § 1788.52. PARAGRAPH 9 OF THE COMPLAINT ALLEGES EXACTLY THAT: "PLAINTIFF HAS COMPLIED WITH CIVIL CODE § 1788.52." (COMPLAINT ¶ 9) WHILE CORPUZ ARGUES THE ALLEGATION LACKS FACTUAL DETAIL ABOUT TIMING AND METHOD OF NOTICE (DEMURRER 3:7-13), A COMPLAINT NEED ONLY ALLEGE ULTIMATE FACTS SUFFICIENT TO APPRISE CORPUZ OF THE BASIS FOR THE CLAIM; EVIDENTIARY FACTS ARE NOT REQUIRED. ((DOE V. CITY OF LOS ANGELES (2007) 42 CAL.4TH 531, 550.) THE FACT OF COMPLIANCE WITH § 1788.52 IS AN ULTIMATE FACT; THE SPECIFIC DATE, METHOD, AND CONTENT OF THE NOTICE ARE EVIDENTIARY DETAILS MORE APPROPRIATELY ADDRESSED THROUGH DISCOVERY OR AT TRIAL.**

Moreover, the attached loan agreement satisfies the Civ. Code § 1788.52 requirement to identify the contract or document evidencing the debt.

- 4. THE COMPLAINT IS NOT UNCERTAIN SINCE IT PROVIDES SUFFICIENT DETAIL FOR CORPUZ TO FRAME A RESPONSE. THE COMPLAINT IDENTIFIES THE CLAIMANT, THE ORIGINAL LENDER, THE ACCOUNT, THE NATURE AND DATE OF THE TRANSACTION, THE GOVERNING AGREEMENT, THE LAST-PAYMENT DATE, THE CHARGE-OFF DATE, THE CHARGE-OFF BALANCE, THE AMOUNT DEMANDED, AND THE CONDUCT CONSTITUTING BREACH. CORPUZ'S ASSERTIONS THAT THE COMPLAINT FAILS TO ALLEGE WHETHER THE COLLATERAL WAS REPOSSESSED AND HOW THE DEMAND AMOUNT WAS CALCULATED MISCHARACTERIZES THE PLEADING. AS STATED ABOVE, THE COMPLAINT DOES NOT ALLEGE REPOSSESSION OR SALE AND AS SUCH THERE ARE NO SALE PROCEEDS TO DISCLOSE. THE AMOUNT DEMANDED IS THE CHARGE-OFF BALANCE, WHICH IS EXPRESSLY ALLEGED. A DISPUTE OVER WHETHER A FACT-DEPENDENT DEFENSE MAY APPLY DOES NOT RENDER THE COMPLAINT UNCERTAIN UNDER CODE. CIV. PROC. § 430.10(F).**

The only plausible issue in Corpuz's demurrer is the omission of an express zero-dollar statement for post-charge-off interest and fees. Civ. Code § 1788.58(a)(4) requires the complaint to allege "the debt balance at charge off and an explanation of the amount, nature, and reason for all post-charge-off interest and fees, if any, imposed by the charge-off creditor or any subsequent purchasers of the debt" with "the charge-off balance, the total of any post-charge-off interest, and the total of any post-charge-off fees" identified separately. (Civ Code § 1788.58(a)(4).)

Nonetheless, the complaint alleges a charge-off balance of \$16,368.10 and seeks damages of exactly \$16,368.10. The amount demanded includes no post-charge-off interest or fees. Read as a whole and liberally construed, as the Court must, the pleading communicates that both post-charge-off categories are zero.

V. Conclusion & Order

Corpuz's demurrer to the complaint is OVERRULED.

Calendar Line 3

Case Name: Capital One, N.A., successor by merger to Discover Bank vs Quang D Nguyen

Case No.: 24CV453256

Motion for summary judgment: notice is proper, and the motion is unopposed. Upon review of the papers, the court concludes that plaintiff has met its initial burden of showing that there is no triable issue of material fact regarding the breach of contract cause of action, and that there is no defense to these causes of action. (Code Civ. Proc. § 437c, subd. (p).) The motion is GRANTED. The court will sign the proposed order and judgment served with the moving papers filed on 3/16/26.

Calendar Line 4

Case Name: *ABEDAYO ABIOYE v. ABRRAHAM CHAPA; VORTEX INDUSTRIES, LLC.*

Case No.: 25CV474504

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

ADEAYO ABIOYE,

Plaintiff,

v.

**ABRRAHAM CHAPA; VORTEX INDUSTRIES,
LLC,**

Defendants.

**Case No. 25CV474504
[TENTATIVE] ORDER AFTER
HEARING**

Date: September 16, 2026

Time: 9:00 a.m.

Dept: 16

Line: 4

The following motion came on regularly for hearing on September 16, at 9:00 a.m. in Department 16, Honorable Matthew S. Harris presiding. The matter having been submitted; it is ordered:

Defendant Abraham Chapa's Motion to Deem Requests for Admission, Set One, Admitted came on for hearing on September 16, 2026, in Department 16 of the above-entitled Court.

The Court has considered the moving papers, any opposition and reply, the arguments of counsel, and the records and files in this action.

The Court finds as follows:

1. Requests for Admission

Defendant served Requests for Admission, Set One, on Plaintiff Adedayo Abioye on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve responses to the Requests for Admission. Plaintiff also did not serve a proposed response substantially complying with Code of Civil Procedure section 2033.220 before the hearing on this motion.

Pursuant to Code of Civil Procedure section 2033.280, Plaintiff waived any objections to the Requests for Admission by failing to timely respond. In the absence of a substantially compliant proposed response served before the hearing, the Court is required to order the matters specified in the requests deemed admitted.

Accordingly, Defendant's Motion to Deem Requests for Admission, Set One, Admitted is GRANTED.

The matters specified in Defendant Abraham Chapa's Requests for Admission, Set One, are hereby DEEMED ADMITTED as to Plaintiff Adedayo Abioye.

The admissions shall have the effect provided by the California Code of Civil Procedure and shall remain binding unless withdrawn or amended pursuant to applicable law.

2. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Admission necessitated Defendant's motion. Pursuant to Code of Civil Procedure section 2033.280(c), monetary sanctions are therefore warranted.

Defendant requests \$4,560 in attorney fees and costs. The Court finds, however, that the requested amount includes time that appears duplicative of time claimed in connection with Defendant's separate Motion to Compel Responses to Form Interrogatories, Set One, which is being heard on the same date.

The Court therefore awards only reasonable, nonduplicative expenses attributable to this motion.

The Court finds reasonable the following time:

5.0 hours for preparation of the motion;

2.0 hours for preparation of a response to any opposition; and

1.0 hour for attendance at the hearing.

The Court declines to award the additional two hours claimed for preparation for and attendance at the hearing because that time appears duplicative of the hearing time claimed and awarded in connection with the separate motion concerning Form Interrogatories.

At the requested hourly rate of \$375, the allowable attorney fees are:

$8.0 \text{ hours} \times \$375/\text{hour} = \$3,000.00$

The Court further allows the claimed filing fee of \$60.00.

Accordingly, the Court awards Defendant Abraham Chapa \$3,060.00 in monetary sanctions against Plaintiff Adedayo Abioye.

Plaintiff shall pay the sanctions in the amount of \$3,060.00 to Defendant's counsel within 30 days after service of notice of entry of this Order.

3. Basis of Order

The Court's determination that the matters are deemed admitted is based upon Plaintiff's failure to timely respond to the Requests for Admission and the requirements of Code of Civil Procedure section

2033.280. The Court is not independently making factual findings concerning the truth of the matters admitted.

IT IS SO ORDERED.

Dated: _____

JUDGE OF THE SUPERIOR COURT

Matthew S. Harris
Judge of the Superior Court

Calendar Line 5

Case Name: *ABEDAYO ABIOYE v. ABRRAHAM CHAPA; VORTEX INDUSTRIES, LLC,*

Case No.: *25CV474504*

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

ADEAYO ABIOYE,

Plaintiff,

v.

**ABRRAHAM CHAPA; VORTEX INDUSTRIES,
LLC,**

Defendants.

**Case No. 25CV474504
[TENTATIVE] ORDER AFTER
HEARING**

Date: September 16, 2026

Time: 9:00 a.m.

Dept: 16

Line: 5

The following motion came on regularly for hearing on September 16, at 9:00 a.m. in Department 16, Honorable Matthew S. Harris presiding. The matter having been submitted; it is ordered:

Defendant Abraham Chapa's Motion to Compel Responses to Form Interrogatories, Set One, came on for hearing on September 16, 2026, in Department 16 of the above-entitled Court.

The Court has considered the moving papers, any opposition and reply, the arguments of counsel, and the records and files in this action.

The Court finds as follows:

1. Form Interrogatories

Defendant served Form Interrogatories, Set One, on Plaintiff Adedayo Abioye on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve responses to the Form Interrogatories. Defendant thereafter attempted to meet and confer regarding the outstanding discovery, including correspondence dated November 13 and November 19, 2025. Plaintiff did not serve responses following those efforts.

Because Plaintiff failed to timely serve responses, Plaintiff has waived objections to the Form Interrogatories pursuant to Code of Civil Procedure section 2030.290.

Accordingly, Defendant's Motion to Compel Responses to Form Interrogatories, Set One, is **GRANTED.**

Plaintiff shall serve **verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 30 days after service of notice of entry of this Order.**

2. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Form Interrogatories necessitated Defendant's motion. Pursuant to Code of Civil Procedure section 2030.290, monetary sanctions are therefore warranted.

Defendant requests \$4,185 in attorney fees and costs. The Court finds, however, that the requested amount includes time that appears duplicative of time claimed in connection with Defendant's separate Motion to Deem Requests for Admission, Set One, Admitted, which is being heard on the same date.

The Court therefore awards only reasonable, nonduplicative expenses attributable to this motion.

The Court finds reasonable the following time:

- **4.0 hours** for preparation of the motion;
- **2.0 hours** for preparation of a response to any opposition; and
- **1.0 hour** for attendance at the hearing.

The Court declines to award the additional two hours claimed for preparation for and attendance at the hearing because that time appears duplicative of the hearing time claimed and awarded in connection with the separate motion concerning Requests for Admission.

At the requested hourly rate of \$375, the allowable attorney fees are:

7.0 hours × \$375/hour = \$2,625.00

The Court further allows the claimed filing fee of **\$60.00**.

Accordingly, the Court awards Defendant Abraham Chapa **\$2,685.00 in monetary sanctions** against Plaintiff Adedayo Abioye.

Plaintiff shall pay the sanctions in the amount of \$2,685.00 to Defendant's counsel within **30 days after service of notice of entry of this Order.**

3. Basis of Order

The Court's order compelling responses is based upon Plaintiff's failure to timely respond to the Form Interrogatories and the requirements of Code of Civil Procedure section 2030.290.

The Court's award of sanctions is limited to reasonable expenses attributable to this motion and excludes attorney time that appears duplicative of time claimed in connection with Defendant's concurrently heard motion concerning Requests for Admission.

IT IS SO ORDERED.

Dated: _____

JUDGE OF THE SUPERIOR COURT

Matthew S. Harris
Judge of the Superior Court

Calendar Line 6

Case Name:

Case No.:

Calendar Line 7

Case Name:

Case No.:

Calendar Line 8

Case Name: *A.T., a minor, by and through his Guardian ad Litem, Anthony Tam v. Tessellations and Does One through One Hundred*

Case No.: 26CV487271

This is a motion for a preferential trial setting under Code of Civil Procedure section 36, subdivision (b), where plaintiff is under 14 years old and has a substantial interest in the case. (Code Civ. Proc., § 36, subd. (b).) Plaintiff and his Guardian ad Litem are the moving party. The motion is unopposed. Because plaintiff meets the statutory criteria, a preferential setting is mandatory.

The motion is GRANTED. The court sets this matter for trial setting on **9/30/2026 at 11:00 a.m.** There will be a mandatory settlement conference on **9/23/2026 at 1:34 p.m.**, and there will be a trial assignment conference on **9/24/2026 at 1:31 p.m. in Department 18** of the court.